

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 34
JUDICIAL OFFICER: LEONARD E MARQUEZ
HEARING DATE: 07/20/2026

INSTRUCTIONS FOR CONTESTING TENTATIVE RULING IN
DEPARTMENT 34

The tentative ruling will become the ruling of the Court unless by 4:00PM of the Court day preceding the hearing, notice is given of an intent to argue the matter. Counsel or self-represented parties must email Department 34 (Dept34@contracosta.courts.ca.gov) to request argument and must specify, in detail, what provision(s) of the tentative ruling they intend to argue and why. Counsel or self-represented parties requesting argument must advise all other counsel and self-represented parties by no later than 4:00PM of their decision to argue, and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Pursuant to Local Rule 3.43(2).)

ALL APPEARANCES TO ARGUE WILL BE IN PERSON OR BY ZOOM, PROVIDED THAT PROPER NOTIFICATION IS RECEIVED BY THE DEPARTMENT AS PER ABOVE.

Zoom link-

<https://contracosta-courts-ca.zoomgov.com/j/1611085023?pwd=SUxPTEFLVzRFYXZycWdTWlJCdHhldz09>

Meeting ID: 161 108 5023
Passcode: 869677

Law & Motion - Only Demurrer/MTS

1. 9:00 AM CASE NUMBER: C23-00217
CASE NAME: PETER KORWIN VS. CALIFORNIA AUTOMOBILE INSURANCE COMPANY
HEARING ON DEMURRER TO: CROSS-COMPLAINT
FILED BY: KORWIN, PETER
TENTATIVE RULING:

Before the Court is Plaintiff/Cross-Defendant Peter Korwin's Demurrer to Cross Complaint by California Automobile Insurance Company and Mercury Insurance Company.

Defendants Demurrer is **OVERRULED** as set forth below.

Factual Allegations and Procedural Background

This matter pertains to an insurance coverage dispute between Plaintiff and Defendants. Plaintiff filed his initial complaint on January 30, 2025, alleging claims of breach of contract and breach of the

implied covenant of good faith and fair dealing (*i.e.* bad faith) against Defendants California Automobile Insurance Company (“CAIC”) and Mercury Insurance Company (“MIC”) (collectively “Defendants”). The claim relates to a fire that occurred at Plaintiff’s residence in April 2020 and regards what coverage was available under the relevant insurance policies.

Defendants filed their Answer on May 5, 2023, denying the allegations and asserting twenty-five affirmative defenses.

Plaintiff filed a First Amended Complaint on April 13, 2026. It included the same two causes of action, but added some factual allegations and included “Waiver, Estoppel or Forfeiture Affirmative Defenses” against the Defendants.

Defendants filed an Answer to the FAC on May 15, 2026. They also filed the Cross-Complaint at issue, which asserts a single cause of action for declaratory relief.

Standard for Demurrer

“The function of a demurrer is to test the sufficiency of the complaint as a matter of law.” (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint “is sufficient if it alleges ultimate rather than evidentiary facts” (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550 (“*Doe*”)), but the plaintiff must set forth the essential facts of his or her case “with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent” of the plaintiff’s claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.) A complaint must be “liberally construed” and a demurrer “overruled if any cause of action is stated by the plaintiff.” (*Amacorp Industrial Leasing Co. v. Robert C. Young Associates, Inc.* (1965) 237 Cal.App.2d 724, 727.)

Legal conclusions are insufficient. (*Id.* at 1098–99; *Doe* at 551, fn. 5.) The Court “assume[s] the truth of the allegations in the complaint, but do[es] not assume the truth of contentions, deductions, or conclusions of law.” (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.) A demurrer lies only for defects appearing on the face of the complaint or from matters of which the court must or may take judicial notice. (CCP 430.40; *see Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) A demurrer may be filed to one of several causes of action in a complaint. (Cal. R. Ct. 3.1320(b).)

Analysis

Pleading a Declaratory Relief Cause of Action

Plaintiff’s main argument is that Defendants have failed to properly plead a claim for declaratory relief.

To qualify for declaratory relief, a party must allege “two essential elements: ‘(1) a proper subject of declaratory relief, and (2) an actual controversy involving justiciable questions relating to [plaintiff’s] rights or obligations....’” (*Wilson & Wilson v. City Council of Redwood City* (2011) 191 Cal.App.4th 1559, 1582.) “To be entitled to declaratory relief the party need not establish a right to a favorable decision.” (*Lockheed Martin Corp. v. Con’l Ins. Co.* (2005) 134 Cal.App.4th 187, 221 (disapproved on other grounds by *State of Calif. v. Allstate Ins. Co.* (2009) 45 Cal.4th 1008, 1036.)

“A complaint for declaratory relief is legally sufficient if it sets forth facts showing the existence of an actual controversy relating to the legal rights and duties of the parties under a written instrument or with respect to property and requests that the rights and duties of the parties be adjudged by the court.” (*Ludgate Ins. Co. v. Lockheed Martin Corp.* (2000) 82 Cal.App.4th 592, 606 *quoting Wellenkamp v. Bank of America* (1978) 21 Cal.3d 943, 947.)

The Cross-Complaint alleges that CAIC issued Plaintiff an insurance policy (“Policy”) that provided

certain coverage for Plaintiff's residence located at 30 Ramona Drive, in Orinda, California (the "Property"). (¶¶ 4-9.) The Policy includes a limit of liability of \$403,000 for Coverage A – Dwelling, which covers the Property. (¶ 5-9.) The Policy also indicates that an additional amount may be available under the Enhanced Home Package, Additional Replacement Cost provision. (*Ibid.*)

In April 2020, CAIC received notice of a fire at the Property. (¶ 10.) CAIC accepted the claim and paid Plaintiff \$463,380.92 under the Coverage A – Dwelling provision mentioned above, as well as approximately \$372,000 under other provisions of the Policy (not at issue here). (¶ 11.) In October 2020, Plaintiff demolished the Property and notified CAIC that he intended to build a different, larger home. (¶ 12.) Currently, the land remains an empty lot. (*Ibid.*)

The Cross-Complaint then alleges two separate disputes regarding the coverage. First, CAIC alleges that Plaintiff "contends that CAIC owes him additional payments under Coverage A – Dwelling" even though CAIC has already paid more than the \$403,000 policy limit available under the provision. (¶ 13.) CAIC disputes Plaintiff's claim. Second, it is alleged that Plaintiff "also contends that CAIC currently owes the additional amounts of insurance above the Coverage A limit that may be available under the Enhanced Home Package endorsement, which is \$201,500..." (¶ 14.) Defendants dispute Plaintiff's position. (*Ibid.*) Instead, Defendants contend that any additional amounts "are only available if the rebuild costs actually incurred by [Plaintiff] exceed the limit of \$403,000." (*Ibid.*) No additional amounts are due under the Policy because Plaintiff has not actually incurred costs to rebuild the Property that exceed \$403,000. (*Ibid.*)

The above allegations sufficiently allege that there is an actual present controversy regarding what benefits Plaintiff is entitled to under the Policy. As noted by Defendants, Plaintiff even alleges in his FAC that the Defendants have breached the Policy by failing to make an additional payment of \$201,500 "above the Dwelling policy limit..." up to a "cap of \$604,500..." (FAC ¶ 16.) This confirms that there is a dispute between the parties concerning the amount potentially still due and owing under the Policy.

Other Arguments

Plaintiff also asserts several other arguments, such as the demurrer is "untimely, not in good faith and unnecessary under the circumstances," and that allowing the cross-complaint will prejudice his right "to a timely jury trial before the five (5) year statute of limitations." Plaintiff provides no facts nor legal citations to support these arguments.

Every memorandum of points and authorities "must contain a statement of facts, *a concise statement of the law*, evidence and arguments relied on, and a discussion of the statutes, cases, and textbooks cited in support of the position advanced." (Cal. R. Ct. 3.1113 (b).) Rule 3.1113 prevents the "trial court from being cast as a tacit advocate for the moving party's theories by freeing it from any obligation to comb the record and the law for factual and legal support that a party has failed to identify or provide." (*Quantum Cooking Concepts, Inc. v. LV Associates, Inc.* (2011) 197 Cal.App.4th 927, 934.)

Plaintiff has failed to adequately support these arguments.

Conclusion

Plaintiff and Cross-Defendant's Demurrer is **OVERRULED**.

2. 9:00 AM CASE NUMBER: C24-00566
CASE NAME: LA TONYA BROOKS VS. GEICO INDEMNITY COMPANY
*HEARING ON MOTION IN RE: STRIKE 4TH AMENDED COMPLAINT
FILED BY: GEICO INDEMNITY COMPANY
TENTATIVE RULING:

Denied as moot. See line 3.

3. 9:00 AM CASE NUMBER: C24-00566
CASE NAME: LA TONYA BROOKS VS. GEICO INDEMNITY COMPANY
HEARING ON DEMURRER TO: 4TH AMENDED COMPLAINT
FILED BY: GEICO INDEMNITY COMPANY
TENTATIVE RULING:

Before the Court is Defendant Geico Indemnity Company's Demurrer to Plaintiff's Fourth Amended Complaint ("FAC").

Defendant's Request for Judicial Notice is **granted**.

Factual Allegations and Procedural Background

Plaintiff filed her initial complaint on March 11, 2024. Geico filed a motion to quash and a demurrer to the complaint. While the demurrer was pending, Plaintiff filed a First Amended Complaint on July 2, 2024. Geico filed a demurrer and motion to strike directed toward the First Amended Complaint – which were not opposed by Plaintiff. As such, the Court sustained the demurrer and granted the motion to strike. The Court granted Plaintiff leave to amend.

On November 7, 2024, Plaintiff filed a Second Amended Complaint. Geico again filed a demurrer and motion to strike. On January 16, 2025, while the demurrer and motion to strike were pending, Plaintiff filed a Third Amended Complaint. The Court ultimately sustained the demurrer and granted the motion to strike relating to the Second Amended Complaint. The Court again granted leave to amend, noting that "the Third Amended Complaint filed on January 16, 2025, is accepted by this court as the current operative complaint."

Geico filed a demurrer and motion to strike directed toward the Third Amended Complaint. The Court sustained the demurrer in full and granted Plaintiff leave to amend.

Plaintiff filed her Fourth Amended Complaint ("4AC") on October 21, 2025. The 4AC alleges four causes of action against Defendant Geico: (1) Breach of Written Contract; (2) Breach of Implied Covenant of Good Faith and Fair Dealing; (3) Bad Insurance Faith, and (4) Negligence. Geico demurs to each of the causes of action as being uncertain and for failure to allege facts to support each cause of action.

Standard for Demurrer

"The function of a demurrer is to test the sufficiency of the complaint as a matter of law." (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint "is sufficient if it alleges ultimate rather than evidentiary facts" (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550 ("*Doe*")), but the plaintiff must set forth the essential facts of his or her case "with reasonable precision and